

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS,

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SUMMONS

JOHN QUINDE,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, DETECTIVE DOUGLAS
DEOTTO, SHIELD No. 7118, POLICE OFFICER
DANIEL DUILTZ, SHIELD No. 11837, POLICE
OFFICER TYLER SCALA, SHIELD No. 526,
SERGEANT BRENDAN BOYLE, SHIELD No. 5017,
POLICE OFFICER DANIEL BOMBERGER, SHIELD
No. 20693, POLICE OFFICER FRANK LUCIANO,
SHIELD No. 2717, and POLICE OFFICERS JOHN DOES
#s 1-10 (names and numbers of whom are unknown at
present),

Plaintiff designates QUEENS
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 30, 2024

Yours, etc.

David Hazan
JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE DOUGLAS DEOTTO, SHIELD No. 7118, 115th Precinct Detective Squad
POLICE OFFICER DANIEL DUILTZ, SHIELD No. 11837, Queens Court Section
POLICE OFFICER TYLER SCALA, SHIELD No. 526, Uniformed Promotions Training Unit
SERGEANT BRENDAN BOYLE, SHIELD No. 5017, 115th Precinct Detective Squad
POLICE OFFICER DANIEL BOMBERGER, SHIELD No. 20693, World Trade Center Command
POLICE OFFICER FRANK LUCIANO, SHIELD No. 2717, Counter Terrorism Division

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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JOHN QUINDE,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE DOUGLAS
DEOTTO, SHIELD No. 7118, POLICE OFFICER
DANIEL DUILTZ, SHIELD No. 11837, POLICE
OFFICER TYLER SCALA, SHIELD No. 526,
SERGEANT BRENDAN BOYLE, SHIELD No. 5017,
POLICE OFFICER DANIEL BOMBERGER, SHIELD
No. 20693, POLICE OFFICER FRANK LUCIANO,
SHIELD No. 2717, and POLICE OFFICERS JOHN DOES
#s 1-10 (names and numbers of whom are unknown at
present),

Defendants.

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Plaintiff JOHN QUINDE, by his attorneys, Jacobs & Hazan, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on August 30, 2021, at approximately 1:30 pm plaintiff was lawfully present at the 115th Precinct stationhouse, located at 92-15 Northern Blvd. New York, NY 11372 at which time defendants unlawfully searched, handcuffed, and falsely arrested plaintiff without probable cause or legal justification. Defendants unlawfully searched, fingerprinted, photographed and detained plaintiff in a holding cell at the 115th Precinct for many hours. After plaintiff was unlawfully detained against his will at the 115th Precinct for approximately 24 hours by the defendants. After plaintiff was unlawfully detained for approximately 24 hours the defendants issued plaintiff a Desk Appearance ticket that falsely charged plaintiff with making false statements to police officers on

August 21, 2021 and released plaintiff from custody at the 115th Precinct. Defendants provided the Queens County District Attorney's Office with false, misleading and incomplete information about the evidence and their basis for arresting plaintiff. The defendants fabricated allegations against plaintiff. Thereafter, defendants did not appear for appointments with the District Attorney's Office to sign the Criminal Court Complaint because they did not want to perjure themselves by signing a document and swearing that the information contained in the document was true when they knew the allegations they made against plaintiff were false. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the police officers possess objective facts to establish probable cause to believe he committed a crime. Plaintiff appeared in Queens County Criminal Court on September 19, 2021, pursuant to the Desk Appearance Ticket that defendants issued to him on August 30, 2021, at which time plaintiff was advised that the Queens County District Attorney's Office declined to prosecute him, and he would not be prosecuted. The officers that did not physically touch or interact with plaintiff but observed their fellow officers violating plaintiff's rights and failed to prevent and/or stop their fellow officers from violating plaintiff's rights are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully searched and falsely arrested him in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff JOHN QUINDE is a resident of the state of New York.
3. Defendant DETECTIVE DOUGLAS DEOTTO, SHIELD No. 7118, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant DETECTIVE DOUGLAS DEOTTO, SHIELD No. 7118, was at all times relevant herein, assigned to the 115th Precinct Detective Squad.
5. Defendant DETECTIVE DOUGLAS DEOTTO, SHEILD No. 7118, is being sued in his individual and official capacity.
6. Defendant POLICE OFFICER DANIEL DUILTZ, SHEILD No. 11837, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant POLICE OFFICER DANIEL DUILTZ, SHIELD No. 11837, was at all times relevant herein, assigned to the 115th Precinct Detective Squad, and is currently assigned to the Queens Court Section.
8. Defendant POLICE OFFICER DANIEL DUILTZ, SHIELD No. 11837, is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER TYLER SCALA, SHIELD No. 526, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER TYLER SCALA, SHIELD No. 526, was at all times relevant herein, assigned to the 115th Precinct, and is currently assigned to Uniformed Promotions Training Unit.

11. Defendant POLICE OFFICER TYLER SCALA, SHIELD No. 526, is being sued in his individual and official capacity.

12. Defendant SERGEANT BRENDAN BOYLE, SHIELD No. 5017 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant SERGEANT BRENDAN BOYLE, SHIELD No. 5017, was at all times relevant herein, assigned to the 115th Precinct Detective Squad.

14. Defendant SERGEANT BRENDAN BOYLE, SHIELD No. 5017, is being sued in his individual and official capacity.

15. Defendant POLICE OFFICER DANIEL BOMBERGER, SHIELD No. 20693, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant POLICE OFFICER DANIEL BOMBERGER, SHIELD No. 20693, was at all times relevant herein, assigned to the 115th Precinct, and is currently assigned to The World Trade Center Command

17. Defendant POLICE OFFICER DANIEL BOMBERGER, SHIELD No. 20693, is being sued in his individual and official capacity.

18. Defendant POLICE OFFICER FRANK LUCIANO SHIELD No. 2717 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant POLICE OFFICER FRANK LUCIANO, SHIELD No. 2717, was at all times relevant herein, assigned to the 115th Precinct, and is currently assigned to the Counter Terrorism Division

20. Defendant POLICE OFFICER FRANK LUCIANO, SHIELD No. 2717, is being sued in his individual and official capacity

21. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. On August 30, 2021, at approximately 1:30 pm plaintiff was lawfully present at the 115th Precinct stationhouse, located at 92-15 Northern Blvd. New York, NY 11372 at which time defendants unlawfully searched, handcuffed, and falsely arrested plaintiff without probable cause or legal justification.

28. Defendants unlawfully searched, fingerprinted, photographed and detained plaintiff in a holding cell at the 115th Precinct for many hours.

29. After plaintiff was unlawfully detained against his will at the 115th Precinct for approximately 24 hours by the defendants.

30. After plaintiff was unlawfully detained for approximately 24 hours the defendants issued plaintiff a Desk Appearance ticket that falsely charged plaintiff with making false statements to police officers on August 21, 2021 and released plaintiff from custody at the 115th Precinct.

31. Defendants provided the Queens County District Attorney's Office with false, misleading and incomplete information about the evidence and their basis for arresting plaintiff.

32. The defendants fabricated allegations against plaintiff.

33. Thereafter, defendants did not appear for appointments with the District Attorney's Office to sign the Criminal Court Complaint because they did not want to perjure themselves by signing a document and swearing that the information contained in the document was true when they knew the allegations they made against plaintiff were false.

34. . At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the police officers possess objective facts to establish probable cause to believe he committed a crime.

35. Plaintiff appeared in Queens County Criminal Court on September 19, 2021 pursuant to the Desk Appearance Ticket that defendants issued to him on August 30, 2021, at which time plaintiff was advised that the Queens County District Attorney's Office declined to prosecute him and he would not be prosecuted.

36. Defendants forwarded false, misleading, and/or incomplete information and/or evidence to the Queens County District Attorney's Office as an explanation for why they allegedly had probable cause to arrest and prosecute plaintiff.

37. At no time relevant herein, did the police officers have probable cause or any other legal justification to believe plaintiff committed any crime.

38. The officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights and failed to prevent and/or stop their them from violating plaintiff's rights are liable to plaintiff for their failure to intervene.

39. Plaintiff was deprived of his Constitutional and common law rights when the individually named defendants unlawfully searched and falsely arrested plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

40. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficient punish defendants for the misconduct they previously engaged in.

41. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess

enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

42. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

43. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

44. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

45. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

46. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of due process by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

47. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully caused plaintiff to be unlawfully searched, seized, falsely arrested and falsely imprisoned, without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

49. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

54. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The illegal approach, pursuit, stop and search inside plaintiff's pockets and underneath her clothing, employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

56. Defendants lacked probable cause to search plaintiff.

57. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

60. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

62. Defendants failed to intervene to prevent the unlawful conduct described herein.

63. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. Plaintiff was unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and denied the right to due process without an objective factual legal basis to seize and arrest pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

67. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally stopped, questioned, frisked, searched, and falsely arrested without probable cause to believe the individual had violated any law or ordinance.

68. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

69. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stopped, questioned, frisked, searched, and falsely arrested, against members of the public when there is no factual basis to suspect the individual has committed a crime.

70. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

71. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

72. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

73. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

74. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of,

and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

75. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

76. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

77. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff JOHN QUINDE demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys' fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 30, 2024

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 30, 2024

David Hazan

DAVID M. HAZAN